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U.S. Department of State Diplomacy in Action

Kuwait

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Amirs, or princes, from the Al-Sabah family have ruled Kuwait in consultation with prominent community figures for over 200 years. The Constitution, adopted in 1962 shortly after independence, provides for an elected national assembly. It also permits the Amir to suspend its articles during periods of martial law. The Amir twice suspended constitutional provisions, from 1976-81 and from 1986-92, and ruled extraconstitutionally during these periods. The National Assembly resumed functioning after the 1992 elections. In May the Amir once again dissolved Parliament. However, in contrast to prior dissolutions, this act was followed by constitutionally mandated elections, which took place in July. The Constitution and law provide for a degree of judicial independence, but the Amir appoints all judges, and renewal of many judicial appointments is subject to government approval.

The Ministry of Interior supervises the security apparatus, including the Criminal Investigation Department (CID) and Kuwait State Security (KSS), two agencies that, in addition to the regular police, investigate internal security-related offenses. Members of the security forces committed a number of human rights abuses.

Richly endowed with oil, during the year the country's estimated per capita gross domestic product (GDP) was approximately \$11,584. The decline in per capita GDP from previous years reflects a significant increase in resident foreign workers and lower oil revenues. The estimated 1998-99 budget deficit was \$6.3 billion. Budget sources projected a \$6.9 billion deficit for the current fiscal year prior to recent significant increases in world crude oil prices. Despite its stated emphasis on an open market, the Government continues to dominate the local economy through direct expenditures and government-owned companies and equities. The Government has initiated a program of disposing of its holdings of stock in private companies. According to government statistics, 92 percent of the indigenous work force is employed by the Government. Foreigners constitute 98 percent of the private sector work force.

There continued to be problems in the Government's human rights record; while there were some improvements in a few areas, the situation worsened in others. Citizens cannot change their head of state. Although under the Constitution the National Assembly must approve the Amir's choice of Crown Prince (that is, the future Amir), this authority is limited; if the National Assembly rejects the Amir's nominee, the Amir then submits three names from which the assembly must choose the new Crown Prince. The Government bans formal political parties, and women do not have the right to vote or seek election to the National Assembly. On November 23, the Parliament vetoed on constitutional grounds the Amir's May decree, which sought to give women the right to vote, to seek election to the National Assembly beginning with the parliamentary election scheduled for 2003, and to hold cabinet office. On November 30, identical legislation that was introduced by Members of

Parliament was defeated by a two-vote margin. A law promulgated in 1998 bans primaries previously conducted by religious sects and tribes. Some police and members of the security forces abuse detainees during interrogation. Prisons remain overcrowded; however, the Government began renovating existing facilities and building a new maximum security prison. The Amir commuted the sentences of 306 prisoners on February 25, Kuwait's national day, including those of the 8 remaining Jordanians, who were held as state security prisoners. The judiciary is subject to government influence, and foreign residents often claim that courts are biased in favor of citizens. The Government infringes on citizens' privacy rights in some areas. Security forces occasionally monitor the activities of individuals and their communications. Men must obtain government approval to marry foreign-born women. The Government uses informal censorship, and journalists practice self-censorship. The Government restricts freedom of assembly and association. The Government places some limits on freedom of religion and movement. The Government prevents the return of stateless persons who have strong ties to the country. Deportation orders may be issued by administrative order, and between 110 and 120 persons are estimated to be held in detention facilities, some for up to 3 to 6 months. In May the Government announced a crackdown on unlicensed branches of nongovernmental organizations (NGO's). violence and discrimination against women are problems. Discrimination against noncitizens persists. The Government restricts some worker rights. The Labor Law does not protect domestic servants regardless of citizenship. Unskilled foreign workers suffer from the lack of a minimum wage in the private sector, from failure to enforce the Labor Law, and at times physical abuse; some work under conditions that, in effect, constitute indentured servitude.

Although the Government has not found a solution to the human rights problems of the approximately 110,000 stateless persons residing in Kuwait known as the "bidoon," (the term means "without") in June it introduced a new program that would naturalize approximately 11,000 bidoon and give permanent residency to the remainder; the program is scheduled to be completed by June 2000. While this program is a positive step, it still leaves the remaining 100,000 bidoon in a legally precarious position.

Executive and legislative leaders continued to strengthen political institutions by resolving major disagreements within the framework of the Constitution and without recourse to extrajudicial measures.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From

a. Political and Other Extrajudicial killing

There were no reports of political or other extrajudicial killings.

There were no developments in the investigations into the extrajudicial killings that occurred during the chaotic period after Kuwait's liberation from Iraqi occupation in February 1991.

b. Disappearance

There were no reports of politically motivated disappearances.

There have been no developments since 1994 in the cases of disappearance that occurred following the country's liberation in 1991. According to the International Committee of the Red Cross (ICRC), Iraqi authorities have not yet accounted for 608 Kuwaitis and residents of Kuwait, including 8 women, who were taken prisoner during Iraq's occupation of Kuwait; 10 more missing prisoner of war cases were added by the ICRC during the year. The Government of Iraq has refused to comply with U.N. Security Council Resolution 687, which stipulates the release of the detainees. Iraq denies that it holds Kuwaiti detainees and in February ceased participating in ICRC-sponsored talks on their fate.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution prohibits torture; however, there continue to be credible reports that some police and members of the security forces abuse detainees during interrogation. Reported abuses include blindfolding, verbal threats, stepping on toes, and slaps and blows. Police and security forces were more likely to inflict such abuse on noncitizens, particularly citizens of other non-Gulf Arab nations and Asians, than on citizens.

The Government states that it investigates all allegations of abuse and that it has punished at least some of the offenders. However, the Government does not make public either the findings of its investigations or what, if any, punishments are imposed. This omission creates a climate of impunity, which diminishes deterrence against abuse.

Defendants have the right to present evidence in court that they have been mistreated during interrogation. However, the courts frequently dismiss abuse complaints because defendants are unable to substantiate their complaints with physical evidence. Members of the security forces routinely decline to reveal their identity during interrogation, a practice that further complicates confirmation of abuse.

An estimated 7,000 unskilled Egyptian workers rioted in Kuwait City on October 30-31. Riot police used tear gas to disperse the crowd and made numerous arrests. There were no serious injuries; however, there were reports of isolated instances of the use of excessive force by police (see Section 6.e.).

Prison conditions, including conditions for those held for security offenses, meet minimum international standards in terms of food, access to basic health care, scheduled family visits, cleanliness, and opportunities for work and exercise. Continuing problems include overcrowding and the lack of availability of specialized medical care. Approximately 1,300 persons are serving sentences or awaiting trial in the central prison. An estimated additional 250 prisoners are being held at the state security facility in Shuwaikh, which also operates as a deportation center.

Following charges of corruption at the central prison in 1998, prison officials were punished and the senior prison official lost his position.

The Ministry of Interior maintained oversight of central prison officials during the year, but there were no new charges of corruption.

The Government reopened Talha prison in 1998, and it is now being used as a prison for persons convicted of civil crimes and those awaiting trial, some of whom subsequently are processed for administrative deportations. Since its reopening, Talha has not been criticized by human rights groups for prisoner mistreatment. The Government also began construction of a new maximum-security facility.

The National Assembly's Human Rights Committee closely monitored prison conditions throughout the year, and the Government allowed the ICRC access to all detention facilities.

d. Arbitrary Arrest, Detention, or Exile

The Constitution provides for freedom from arbitrary arrest and detention; however, the Government occasionally arbitrarily arrests and detains persons. There also were incidents of prolonged detention.

Police officers must obtain an arrest warrant from state prosecutors before making an arrest, although in misdemeanor cases the arresting officer may issue them. Security forces occasionally detain persons at checkpoints in Kuwait City (see Section 2.d.).

Under the Penal Code, a suspect may not be held for more than 4 days without charge. Security officers sometimes prevent families from visiting detainees during this confinement. After 4 days, prosecutors must either release the suspect or file charges. If charges are filed, prosecutors may remand a suspect to detention for an additional 21 days. Prosecutors also may obtain court orders for further detention pending trial.

Dr Ahmed Al-Baghdadi, a prominent professor and journalist, was detained in October for 2 weeks for an article that he published in 1996. On October 18, Salafi Islamist Ahmed Al-Ali was detained for 1 day for making inflammatory antiregime comments. In both cases, the charges were brought by private citizens and were handled in accordance with the law (see Section 2.a.).

During the election campaign, five parliamentary candidates were arrested and charged with unlawful slander against the Government. One of the candidates was sentenced to 6 months in prison (see Sections 2.a. and 3).

In October police arrested up to 2,500 persons in connection with riots by foreign workers (see Section 6.e.).

Of the estimated 2,100 persons serving sentences or pending trial at the security prison or the state security facility in Shuwaikh, approximately 170 are being held on security grounds.

The Government may expel noncitizens (including bidoon, that is, stateless residents of Kuwait, some of whom are native born or long-term residents), if it considers them security risks. The Government also may expel foreigners if they are unable to obtain or renew work or residency permits. Between 110 and 120 persons are estimated to be held in detention facilities, some of them pending deportation. Some of these detainees have been held for up to 3 to 6 months. Many deportation orders are issued administratively, without the benefit of a trial. However, the Government does not return deportees to their countries of origin forcibly, allowing those who object to remain in detention. This practice leads to prolonged detention of deportees, particularly Iraqis, who do not wish to return to their own countries. It also plays a role in the complex problem faced by bidoon deportees, who essentially remain in detention because their stateless condition makes the execution of the deportation order impossible.

The Talha deportation center, which had been criticized in previous years by human rights groups, reopened in 1998. However, there were no allegations of the prolonged detention of deportees in the facility during the year.

The law protects citizens from exile, and there were no reports of this practice.

e. Denial of Fair Public Trial

The Constitution states that "judges shall not be subject to any authority;" however, the Amir appoints all judges, and renewal of many judicial appointments is subject to government approval. Judges who are citizens have lifetime appointments, but the Government also employs many noncitizens as judges. These noncitizen judges work under 1- to 3-year renewable contracts, which undermines their independence. The Ministry of Justice may remove judges for cause, but it rarely does so. Foreign residents involved in legal disputes with citizens frequently complain that the courts show a pro-Kuwaiti bias.

The regular court system tries both civil and criminal cases. The Court of Cassation is the highest level of judicial appeal. Sunni and Shi'a Muslims have recourse to courts of their respective denominations for family law cases; however, there is no Shi'a appellate court. Shi'a cases are referred to the Sunni court on appeal.

Defendants have the right to confront their accusers and appeal verdicts. The Amir has the constitutional power to pardon or commute all sentences. Defendants in felony cases are required by law to be represented in court by legal counsel, which the courts provide in criminal cases. In misdemeanor cases, defendants have the right to waive the presence of legal counsel, and the court is not required to provide counsel to indigent defendants.

Both defendants and prosecutors may appeal court verdicts to the High Court of Appeal, which may rule on whether the law was applied properly as well as on the guilt or innocence of the defendant. Decisions of the High Court of Appeal may be presented to the Court of Cassation, which conducts a limited, formal review of cases to determine only whether the law was applied properly.

In the regular court system there are no groups, including women, who are barred from testifying or whose testimony is given lesser weight. However, the Islamic courts, which have jurisdiction over family law, apply Shari'a (Islamic law), which states that the testimony of two women equals that of one man.

There were no reports of political prisoners. The Government continues to incarcerate persons convicted of collaboration with Iraq during the occupation. By law such collaboration is a felony. Most of the persons convicted in the Martial Law Court in 1991 and the Special State Security Court, which was abolished in 1995, did not receive fair trials. In February the Amir freed the remaining eight Jordanians convicted previously by the martial law and state security courts. At year's end, 50 persons (29 Iraqis, 17 bidoon and 4 Palestinians) convicted by these now abolished courts remained in prison.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The Constitution provides for individual privacy and sanctity of the home; however, the Government infringes on these rights in some areas. The police must obtain a warrant to search both public and private property unless they are in hot pursuit of a suspect fleeing the scene of a crime or if alcohol or illegal narcotics are suspected on the premises. The warrant may be obtained from the State Prosecutor or, in the case of private property, from a judge. In May an Amiri decree was issued that gives the police under warrant the right to conduct searches for illegal firearms by neighborhood. The National Assembly rejected the decree during its fall session; no similar legislation was introduced to take its place. The security forces occasionally monitor the activities of individuals and their communications.

By law men must obtain government approval to marry foreign-born women. Although the Government may advise against marriage to a foreign national, there are no known cases of the Government refusing permission to marry. The Government advises women against marrying foreign nationals, and it forbids marriage between Muslim women and non-Muslim men.

Section 2 Respect for Civil Liberties, Including

a. Freedom of Speech and Press

The Constitution provides for freedom of the press, printing, and publishing "in accordance with the conditions and manner specified by law," and, with a few exceptions, citizens are free to criticize the Government at public meetings and in the media; however, journalists practice self-censorship. Several laws empower the Government to impose restrictions on freedom of speech and the press. During the year, several court cases effectively weakened these laws by striking down punitive sentences that accompanied earlier convictions; however, the application of these laws persisted throughout the year. The Government, through the Ministry of Information, practices informal censorship by placing pressure on individual publishers and editors believed to have "crossed the line" in attacking government policies and discussing issues deemed offensive to Islam, tradition, or the interests of the State.

During the election campaign, five parliamentary candidates were arrested and charged with unlawful slander against the Government. One of the candidates was sentenced to 6 months in prison (see Section 3).

Newspapers are privately owned and free to publish on most social, economic, and political issues; they frequently criticize government policies and officials, including the Crown Prince. The only prohibited subjects are the Amir and attacks on Islam.

The Government ended prepublication censorship in 1992, but journalists still censor themselves. The Press Law prohibits the publication of any direct criticism of the Amir, official government communications with other states, and material that serves to "attack religions" or "incite people to commit crimes, creates hatred, or spreads dissension among the populace."

In order to begin publication of a newspaper, the publisher must obtain an operating license from the Ministry of Information. Publishers may lose their licenses if their publications do not appear for 6 months. This 6-month rule prevents publishers from publishing sporadically--it is not used to suspend or shut down existing newspapers. Individuals also must obtain

permission from the Ministry of Information before publishing any printed material, including brochures and wall posters. The Government does not censor foreign journalists and permits them open access to the country.

In January the Court of Appeals reduced an unusually strong sentence against the daily newspaper Al-Qabas, which had been accused of publishing an item that was deemed blasphemous and insulting to Islam. The appeals court issued a nominal fine to the Al-Qabas editor in chief and dismissed the 6-month jail term, to which he had been sentenced by a lower court. In a related case, the Court of Appeals also imposed a nominal fine while dismissing the jail sentence on a second journalist who had been charged for having criticized the office of the public prosecutor by alleging irregularities in its handling of an embezzlement case. The Constitutional Court rejected the Al-Qabas countersuit that the Press Law was unconstitutional, and the Court of Appeals did not rule on the constitutionality of the Press Law, holding that it has no jurisdiction in such cases.

A journalist was held for several days for questioning by police in February following his return from Israel, where he had conducted interviews with several Israeli officials. Charges were not brought against the journalist and the case subsequently lapsed.

In July the Kuwait reporting office of the Qatar based Al-Jazeera satellite television station was reopened after a month's closure. The office initially was closed after a talk show broadcast that featured a telephone caller from another country who repeatedly made insulting comments about the Amir.

The Government closed the daily newspaper Al-Seyassah on October 18 for 5 days for publishing inflammatory comments made by Salafi Islamist Hamed Al-Ali. Al-Ali was detained for 1 day and then released on bail pending an investigation into his remarks (see Section 1.d.).

The Government owns and controls the radio and television companies. The Government does not inhibit the purchase of satellite dishes, which are widely available. Citizens with such devices are free to watch a variety of programs, including those that broadcast from Israel and Iraq. Kuwaitis freely watched Al-Jazeera during the closure period of its local office.

The Ministry of Information censors all books, films, videotapes, periodicals, and other imported publications deemed morally offensive. In 1998 the Ministry announced plans to censor the Internet; however, it indicated that the methods of enforcement and technical issues must still be worked out. The Ministry has censored political topics as well and does not grant licenses to magazines with a political focus. The General Organization of Printing and Publishing controls the printing, publishing, and distribution of informational materials.

Dr. Ahred Al-Baghdadi, a prominent professor and journalist, was sentenced on October 4 to 4 weeks in prison for "defaming the established beliefs and rites of the Islamic faith." Al-Baghdadi was convicted for stating that "the Prophet had failed in spreading the message of Islam in his early years in his home town of Makkad" in an article published in 1996. Al-Baghdadi was convicted under a law that prohibits insults to Islam after charges against him were brought by a private citizen, as provided by the law. The Amir pardoned Al-Baghdadi after he served 2 weeks of his 4-week sentence (see Section 1.d.).

On October 9, another professor and journalist, Dr. Shamlan Al-Issa was questioned by government authorities concerning an interview that he gave in September in which he refused to accept the implementation of Shari'a as the sole basis of law. Al-Issa also was charged by a private citizen with defaming Islam; however, the Government found no basis to the claim and the charges were dropped.

There is no government censorship of university teaching, research, or publication. However, academics are subject to the same restraints as the media with regard to criticism of the Amir or Islam.

b. Freedom of Peaceful Assembly and Association

The Constitution affirms the right to assembly; however, the Government restricts this right in practice. Public gatherings must receive prior government approval, as must private gatherings of more than five persons that result in the issuance of a public statement. Political activity is confined to informal, family-based, almost exclusively male social gatherings known as diwanias. Practically every male adult, including the Amir, hosts or attends diwanias, at which every possible topic is discussed. The diwaniya contributes to the development of political consensus and official decisionmaking.

The Constitution affirms the right of association; however, the Government restricts this right in practice. The Government bans political parties. Several informal blocs, acting much like parties, exist and were active during the July National Assembly elections. The Government has made no effort to constrain these groupings, which are organized on the basis of common ideological goals. Many may be categorized as "opposition" groups.

All nongovernmental organizations (NGO's) must obtain a license from the Ministry of Social Affairs and Labor. The Government uses its power to license as a means of political control. The Ministry has registered 52 NGO's, including professional groups, a bar association, and scientific bodies. These groups receive government subsidies for their operating expenses. Their members must obtain permission from the Ministry before attending international conferences. However, since 1985 the Ministry has issued only three licenses. The Ministry has disapproved other license requests on the grounds that previously established NGO's already provide services similar to those proposed by the petitioners (see Section 4).

In May the Government announced a crackdown on unlicensed branches of NGO's, whose activities it previously had overlooked, including unlicensed branches of Islamic charities, and required that they cease operations by mid-September. The crackdown was taken in accordance with a 1993 decree that ordered unregistered NGO's to cease activities. Subsequently, the Council of Ministers announced that the Ministries of Social Affairs and Awqaf (religious affairs) would undertake a study to determine how best to organize existing NGO's and the fate of unlicensed NGO's; the 1993 decree has not been challenged legally.

c. Freedom of Religion

Islam is the state religion; although the Constitution provides for freedom of religion, the Government places some limits on this right. The Constitution also provides that the State protect the freedom to practice religion in accordance with established customs, "provided that it does not conflict with public policy or morals." The Constitution states that Shari'a (Islamic law) is "a main source of legislation."

The procedures for registration and licensing of religious groups are unclear. The Ministry of Awqaf and Islamic Affairs has official responsibility for overseeing religious groups. Nevertheless, in reality officially recognized churches must deal with a variety of government entities, including the Ministry of Social Affairs and Labor (for visas and residence permits for pastors and other staff) and the Kuwaiti Municipality (for building permits). While there reportedly is no official government "list" of recognized churches, seven Christian churches have at least some sort of official recognition that enables them to operate openly. These seven churches have open "files" at the Ministry of Social Affairs and Labor, allowing them to bring in the pastors and staff necessary to operate their churches. Further, by tradition three of the country's churches are recognized widely as enjoying "full recognition" by the Government and are allowed to operate compounds officially designated as churches: the Catholic Church (which includes two separate churches); the Anglican Church; and the National Evangelical Church of Kuwait (Protestant). The other four churches reportedly are allowed to operate openly, hire employees, invite religious speakers, etc. without interference from the Government, but their compounds are, according to government records, registered only as private homes. The churches themselves appear uncertain about the guidelines or procedures for recognition. Some have argued that these procedures purposely are kept vague by the Government to maintain the status quo. All other churches and religions have no legal status but are allowed to operate in private homes.

The procedures for registration and licensing of religious groups also appear to be connected with government restrictions on NGO's, religious or otherwise. In 1993 all unlicensed organizations were ordered by the Council of Ministers to cease their activities, but this order has never been enforced. However, since that time, all but three applications by NGO's have been

frozen. There were reports that in the last few years at least two groups have applied for permission to build their own churches, but the Government has not responded to their requests.

There are many other Christian denominations in the country, with tens of thousands of members, which, while not recognized legally, are allowed to operate in private homes or in the facilities of recognized churches. Members of these congregations have reported that they are able to worship without government interference, provided that they do not disturb their neighbors and do not violate laws regarding assembly and proselytizing.

Members of religions not sanctioned in the Koran, such as Hindus, Sikhs, Baha'is, and Buddhists, may not build places of worship but are allowed to worship privately in private homes without interference from the Government.

Shi'a are free to conduct their traditional forms of worship without government interference. However, members of the Shi'a community claim that the Government has not approved the construction of Shi'a mosques in recent years.

The Government prohibits missionaries from proselytizing among Muslims; however, they may serve non-Muslim congregations. The law prohibits organized religious education for religions other than Islam, although this law is not enforced rigidly. Informal religious instruction occurs inside private homes and on church compounds without government interference. However, there were reports that government "inspectors" periodically visit public and private schools outside of church compounds to ensure that no religious teaching other than Islam takes place.

The Government does not permit the establishment of non-Islamic publishing companies or training institutions for clergy. Nevertheless, several churches publish religious materials for use solely by their congregations. Further, some churches, in the privacy of their compounds, provide informal instruction to individuals interested in joining the clergy.

A private company, the Book House Co., Ltd., is permitted to import significant amounts of Bibles and other religious materials for use solely among the congregations of the country's recognized Christian churches. The Book House Co. has an import license to bring in such materials, which also must be approved by government censors. There have been reports of private citizens having non-Islamic religious materials confiscated by customs officials upon arrival at the airport.

Although there is a small community of Christian citizens, a law passed in 1980 prohibits the naturalization of non-Muslims. However, citizens who were Christians before 1980 (and children born to families of such citizens since that date), are allowed to transmit their citizenship to their children.

According to the law, a non-Muslim male must convert to Islam when he marries a Muslim woman if the wedding is to be legal in Kuwait. A non-Muslim female does not have to convert to Islam to marry a Muslim male, but it is to her advantage to do so. Failure to convert may mean that, should the couple later divorce, the Muslim father would be granted custody of any children.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Government places some limits on freedom of movement. Citizens have the right to travel freely within the country and to change their work place as desired. Unmarried women 21 years old and over are free to obtain a passport and travel abroad at any time. However, married women who apply for passports must obtain their husbands' signature on the application form. Once she has a passport, a married woman does not need her husband's permission to travel, but he may prevent her departure from the country by placing a 24-hour travel ban on her. He can do this by contacting the immigration authorities. After this 24-hour period, a court order is required if the husband still wishes to prevent his wife from leaving the country. All minor children must have their father's permission to travel outside of the country. Citizens are free to emigrate and to return. Security forces in Kuwait City occasionally set up checkpoints where they may detain individuals. The checkpoints are mainly for immigration purposes and are used to apprehend undocumented aliens.

The Government has the right to place a travel ban on any citizen or foreigner who has a legal case pending before the courts. The Government restricts the ability of members of NGO's to attend conferences abroad (see Section 2.b.).

A serious problem exists in the case of the bidoon, stateless persons of mainly Iraqi or Iranian descent, who resided in Kuwait prior to the Iraqi invasion. Some bidoon have had residency ties to Kuwait for generations. Others entered the country during the oil boom years. There are an estimated 110,000 bidoon, down from a prewar level of 220,000. The bidoon problem remains the subject of nearly continuous press commentary and political discussion. While many citizens count bidoon among their family members, a significant number believe that bidoon should not be eligible for citizenship and the benefits that it conveys. The Government maintains that many bidoon are concealing their true citizenship in order to remain in Kuwait, become citizens, and enjoy the generous benefits provided to citizens. The Government has made only limited progress towards solving the longstanding issue of the bidoon. In June the Government introduced a program to naturalize an estimated 11,000 bidoon. As part of this program, the remaining bidoon would be granted permanent residency status provided that they reveal their actual nationalities, although most claim to have no other nationality. The Government does not wish the return of the bidoon who departed the country during the 1990-91 Gulf War and frequently delays or denies issuing them entry visas. This policy imposes serious hardships, including family separations.

Despite the highly publicized reconciliation with Yemen, Sudan, and Jordan, which supported Iraq during the war, the Government generally maintained its postwar policy of limiting the presence of persons from countries that supported Iraq, and there was no significant increase in the number of these countries' nationals living in the country. The number of such residents is now only about 10 percent of its prewar total. The Government instituted a policy in 1996 to route the residence permit renewals of these nationals through the State Security Service. While the rate of renewal denials has declined over the last year for these nationals, many, such as Palestinians and Iraqis, have no country to which they may return, or have fears of persecution upon return (see Section 5).

While the Government permits the ICRC to verify if deportees object to returning to their countries of origin, it detains those with objections in the state security detention facility in Shuwaikh until they either change their mind or succeed in making alternative arrangements for travel to another country (see Section 1.d.).

There is no legislation governing refugees, asylees, or first asylum, and no clear standard procedure for processing a person's claim to be a refugee. The Constitution prohibits the extradition of political refugees. The Government states that it does not deport anyone who claims a fear of persecution at home, but it often keeps such persons in detention rather than granting them permission to live and work in the country. The U.N. High Commission on Refugees (UNHCR) maintains an office in the country and has access to refugees in detention. There were no reports of the forced return of persons to a country where they feared persecution.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Citizens cannot change their head of state. Although under the Constitution the National Assembly must approve the Amir's choice of Crown Prince (that is, the future Amir), this authority is limited. If the Assembly rejects the Amir's nominee, the Amir then submits three names from which the Assembly must choose the new Crown Prince. Women and citizens naturalized for less than 20 years may not vote or seek election to the National Assembly. In November the Parliament vetoed the Amir's May decree on constitutional grounds. The decree had given women the right to vote, to seek election to the National Assembly beginning with the parliamentary election scheduled for 2003, and to hold cabinet office. Shortly thereafter, identical legislation was introduced by Members of Parliament. By a narrow two-vote margin, the bill was defeated. Members of parliament are prevented constitutionally from submitting similar legislation until the following session, which is scheduled to begin in October 2000. The Government may introduce similar or identical legislation at any point. Women's rights activists used the occasion of International Women's Day (March 8) to attempt to register as voters in two districts; they were unsuccessful. Members of the armed forces, police, and other uniformed personnel of the Ministry of Interior are prohibited from voting.

Under the Constitution, the Amir holds executive power and shares legislative power with the National Assembly. The Prime Minister presides over a 16-member cabinet. In accordance with the practice of the ruling family (but not specifically the Constitution), the Prime Minister always has been the Crown Prince. The Constitution empowers the Amir to suspend its provisions and to rule by decree. The Amir dissolved the National Assembly from 1976-81, and in 1986 the Amir effectively dissolved the Assembly by suspending the constitutional provisions on the Assembly's election. The Assembly remained dissolved until 1992, when elections were held. Members serve 4-year terms, and National Assembly elections have been held on schedule. The elections have been conducted freely and fairly among the minority of citizens who are permitted to vote. Since the Government prohibits political parties, Assembly candidates must nominate themselves. Nonetheless, informal political groupings are active in the Assembly. The Constitution empowers the National Assembly to overturn any Amiri decrees made during the dissolution, and the Assembly has done so in some cases.

In May the Amir dissolved the National Assembly in response to the political gridlock that emerged between Parliament and the Government. The Amir scheduled elections to take place 2 months later as specified in the Constitution; past dissolutions of the National Assembly (1976 and 1981) were followed by extended periods of extraconstitutional rule without the required elections.

Although the election campaign generally was free and fair, five parliamentary candidates were arrested and charged with unlawful slander against the Government. Four of those arrested received nominal fines, had their cases postponed, or were acquitted. While the candidates were not required to withdraw from the election, the fifth candidate withdrew, subsequently was convicted of the charges in July, and was sentenced to 6 months in prison (see Section 1.d.).

In 1998 the National Assembly passed legislation that bans primaries previously conducted by religious sects and tribes. The National Assembly's objective in passing this legislation was to eliminate the process by which candidates were withdrawn from elections and votes concentrated on the remaining candidates from these groups.

The Government attempted to enforce the ban on tribal primaries during the July elections. As a result, charges were filed against several hundred citizens. The Public Prosecutor also sought to lift the immunity of two newly elected Members of Parliament (M.P.'s) in order to charge them with violating the ban on tribal primaries. During its fall session, the National Assembly declined to lift the parliamentary immunity of the two charged M.P.'s.

Women are disenfranchised and have little opportunity to influence government.

Members of the Shi'a minority generally are underrepresented in high government positions. There is only one Shi'a member of the Cabinet, the Minister of Commerce. Six of 50 National Assembly members are Shi'a, as is the armed forces chief of staff.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The Government continued its practice of preventing the establishment of local human rights groups by not approving their requests for licenses (see Section 2.b.). It also continued to restrict the ability of NGO members to attend conferences abroad (see Sections 2.b. and 2.d.). In May the Government announced a crackdown on unlicensed branches of NGO's (see Section 2.b.).

Their members must obtain permission from the Ministry before attending international conferences. However, since 1985 the Ministry has issued only three licenses. The Ministry has disapproved other license requests on the grounds that previously established NGO's already provide services similar to those proposed by the petitioners (see Section 4).

In May the Government announced a crackdown on unlicensed NGO's, whose activities it previously had overlooked, including unlicensed branches of Islamic charities, and required that they cease operations by mid-September.

The Government permits international human rights organizations to visit the country and to establish offices. Several organizations conduct fieldwork and report excellent communication with and reasonable cooperation from the Government.

The National Assembly has an active Human Rights Committee, which takes testimony from individuals about abuses, investigates prison conditions, and makes nonbinding recommendations for redress. Despite its designation as an advisory body, the Human Rights Committee has shown that, in practice, it is able to mobilize government agencies to address egregious human rights problems.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Constitution prohibits discrimination based on race, national origin, language, or religion. However, laws and regulations discriminate in some cases against women and noncitizens, who face widespread social, economic, and legal discrimination.

Women

Violence against women is a problem. According to some local experts, domestic abuse of women occurs in an estimated 15 percent of all marriages. Each of the country's 50 police stations receives approximately 1 to 2 complaints of spousal abuse each week, although this figure may be understated. Of the complaints received, approximately 60 percent involve spousal abuse of noncitizen women. The police and the courts generally seek to resolve family disputes informally and may ask the offending spouse to sign a statement affirming that he agrees to end the abuse. The police refer serious cases to the Psychiatric Department at the Ministry of Health. The courts have found husbands guilty of spousal abuse. There have been isolated instances of "honor" crimes; however, there is no provision in the Criminal Code that allows for leniency in such cases.

Some employers physically abuse foreign women working as domestic servants, and there are continuing reports of rape of these women by male employers. The local press gives the problem considerable attention, and both the police and the courts have taken action against employers when presented with evidence of serious abuse. In August a Sri Lankan maid died after being beaten by her Kuwaiti employers. Police arrested her employers and after further investigation the case was sent to court for trial; action was still pending at year's end. In another case, a charge of murder was brought against a Kuwaiti woman who beat her Indian maid to death. The employer admitted to beating her maid in the past, but not to the point of injuring her. Foreign-born domestic employees have the right to sue their employers for abuse, but few do so due to both fear of deportation and fear that the judicial system is biased against them. The Government has designated a police station to investigate complaints and provide some shelter for runaway maids.

Runaway servants often seek shelter at their country's embassy for either repatriation or a change in employers. At times during the year, the Philippine and Sri Lankan embassies each sheltered as many as 150 women. Although most of these women sought shelter due to contractual or financial problems with their employers, many also alleged physical and sexual abuse. The Sri Lankan, Indian, and Philippine embassies all continue to report the steady occurrence of physical abuse and mistreatment involving domestic servants.

Women experience legal and social discrimination. Women are denied the right to vote (see Section 3). Their testimony is not given equal weight to that of males in the Islamic courts (see Section 1.e.). Married women require their husbands' permission to obtain a passport (see Section 2.d.). By law only men are able to confer citizenship; therefore, children born to Kuwaiti mothers and stateless fathers are themselves stateless. The Government forbids marriage between Muslim women and non-Muslim men (see Section 1.f.). Inheritance is governed by Islamic law, which differs between Sunni and Shi'a. In the absence of a direct male heir, Shi'a women may inherit all property while Sunni women inherit only a portion, with the balance divided among brothers, uncles, and male cousins of the deceased.

Women traditionally are restrained from choosing certain roles in society, and the law restricts women from working in "dangerous industries" and trades "harmful" to health. However, almost all citizens work for the State in office jobs and women are allowed into most areas of the bureaucracy, including even oil well firefighting units. Educated women maintain

that conservative religious trends limit career opportunities. Nonetheless, an estimated 33 percent of women of working age are employed. The law promises "remuneration equal to that of a man provided she does the same work." This promise is respected in practice. Women work as doctors, engineers, lawyers, bankers, and professors. A few have been appointed to senior positions in the Ministry of Education, the Ministry of Planning, the Foreign Ministry, and the state-owned Kuwaiti Petroleum Corporation. However, there are no female judges or prosecutors.

In cases of divorce, the Government makes family entitlement payments to the divorced husband, who is expected by law and custom to provide for his children even though custody of minor children usually is given to the mother. The law discriminates against women married to foreign men. Such women are not entitled to government housing subsidies, which are available to male citizens. The law also requires women to pay residence fees for their husbands and does not recognize marriage as the basis for granting residency to foreign-born husbands. Instead, the law grants residency only if the husband is employed. By contrast Kuwaiti men married to foreign-born women do not have to pay residency fees for their spouses, and their spouses' right to residency derives from marriage.

Polygyny is legal and is more common among tribal elements of the population. A husband is obliged to inform his first wife that he is taking a second wife. The husband is obligated to provide the first wife a separate household if that is her preference. It is the second wife's choice to get married. A first wife who objects to a second marriage can request a divorce, but the court's determination of divorce and child custody would be made on grounds other than the fact of the second marriage itself.

There are several women's organizations that follow women's issues, among the most active of which are the Women's Socio-Cultural Society and the Women's Affairs Committee.

Children

The Government is committed to the welfare of children. Both boys and girls receive a free education to the university level. The Government provides free health care and a variety of other services to all children.

Marriage of girls under the age of 17 is uncommon among the urban population, but remains a practice of the Bedouins in outlying areas.

There is no societal pattern of abuse of children.

People with Disabilities

There is no institutionalized discrimination against disabled persons in employment, education, or in the provision of state services. Legislation passed by the National Assembly in 1996 mandates accessibility for the disabled to all facilities frequented by the public, and provides an affirmative action employment program for the disabled. However, this law has not been implemented fully. The Government pays extensive benefits for disabled citizens, which cover transportation, housing, job training, and social welfare.

National/Racial/Ethnic Minorities

The Government's failure to improve the plight of the 110,000 bidoon remains a significant problem. The bidoon have been the objects of hostile government policy since the mid-1980's. Since 1985 the Government has eliminated the bidoon from the census rolls, discontinued their access to government jobs and free education, and sought to deport many bidoon. In 1993 the Government decreed that bidoon males no longer would be allowed to enlist in the military service. Those presently in the armed forces gradually are being replaced, although approximately 700 bidoon sons of citizen mothers were allowed to enlist during the year. The Government does not issue travel documents to bidoon routinely, and if bidoon travel abroad, they risk being barred from returning to the country unless they receive advance permission from the immigration authorities. Marriages pose special hardships because the offspring of male bidoon inherit the father's undetermined legal status.

The Government introduced in June a program to naturalize an estimated 11,000 bidoon. The remaining bidoon (approximately 100,000) would be granted permanent residency status. Naturalization and assignment of permanent residency began with the onset of the program and are scheduled to be completed in June 2000. This program would confer citizenship on those persons who were accounted for in the 1965 census but were over the age of 21 and whose parents naturalized, or who had a Kuwaiti mother and a non-Kuwaiti father who was absent. Those bidoon not accounted for by the 1965 census either personally or through a parent would be given civil identification cards and permanent residency that would grant them the right to work and to receive medical and educational benefits.

The Government claims that it issues a residency visa and legal status to any bidoon who presents a passport, regardless of the country of issuance. This has led some bidoon to acquire passports from countries with which they have no affiliation, but which have liberal "economic citizenship" programs, although this practice has declined sharply since 1997. There were no reports during the year that the Government denied residency visas to bidoon who obtained passports or that it unilaterally decided the nationality of any stateless residents without a hearing.

Since the end of the Gulf War, government policy has been targeted against workers from those nationalities whose leaders supported Iraq, especially Palestinians, Jordanians, and Yemenis. The Government has argued that during the Iraqi occupation, many of these workers' governments sided with the Iraqi forces. The Government has delayed or denied the issuance of work and residency permits to persons in these groups, and in many cases has hindered those workers who are permitted to reside in the country from sponsoring their families to join them. Many of these nationals also have resorted to the purchase of third country passports in order to gain entry to, or legalize their status in, the country. A government policy to route the residency visas of these nationals through the State Security Service had led to a sharp increase in renewal denials in the period immediately after the war (see Section 2.d.). During the year, diplomatic relations were restored with Yemen, Sudan, and Jordan; however, the Government generally maintained its postwar policy of limiting the presence of nationals from countries that supported Iraq, and there was no significant increase in the number of those countries' nationals living in the country (see Section 2.d.).

Section 6 Worker Rights

a. The Right of Association

Workers have the right, but are not required, to join unions. Nonetheless, the Government restricts the right of association by prohibiting all workers from freely establishing trade unions. The law stipulates that workers may establish only one union in any occupational trade, and that the unions may establish only one federation. The International Labor Organization (ILO) long has criticized such restrictions.

Approximately 50,000 persons (less than 5 percent) of a total work force estimated at 1,233,000 are organized in 14 unions, 12 of which are affiliated with the Kuwait Trade Union Federation (KTUF), the sole legal trade union federation. A proposed new labor law, which did not pass in 1998 and was the source of a KTUF complaint to the ILO that year, still had not been enacted by year's end. The KTUF took no further action during the year on its complaint. The Bank Worker's Union and the Kuwait Airways Workers Union, which consist of approximately 4,500 workers, are independent of the KTUF. The Government has shown no sign that it would accept the establishment of more than one legal trade union federation. The law stipulates that any new union must include at least 100 workers, of whom at least 15 must be citizens. Both the ILO and the International Confederation of Free Trade Unions have criticized this requirement because it discourages unions in sectors that employ few citizens, such as the construction industry and the domestic sector.

The Government's pervasive oversight powers further erode union independence. The Government subsidizes as much as 90 percent of most union budgets, may inspect the financial records of any union, and prohibits any union from engaging in political or religious activities, which are defined vaguely. The law empowers the courts to dissolve any union for violating labor laws or for threatening "public order and morals." Such a court decision may be appealed. The Amir also may dissolve

a union by decree. By law the Ministry of Social Affairs and Labor is authorized to seize the assets of any dissolved union. The ILO has criticized this aspect of the law. Although no union has been dissolved, the law subordinates the legal existence of the unions to the power of the State.

Approximately 1,027,000 foreign workers are employed in the country. They constitute over 80 percent of the work force but only about 10 percent of the unionized work force. The Labor Law discriminates against foreign workers by permitting them to join unions only after 5 years of residence, although the KTUF states that this requirement is not enforced and that foreigners may join unions regardless of their length of stay. In addition the law stipulates that foreigners may participate only as nonvoting members. Unlike union members who are citizens, foreign workers do not have the right to elect their leadership. The law requires that union officials must be citizens. The ILO has criticized the 5-year residency requirement and the denial of voting rights for foreign workers.

The law limits the right to strike. It requires that all labor disputes must be referred to compulsory arbitration if labor and management cannot reach a solution (see Section 6.b.). The law does not have any provision ensuring strikers freedom from any legal or administrative action taken against them by the State. However, the Ministry of Labor and Social Affairs has proved responsive to sit-ins or protests by workers who face obvious wrongdoing by their employers.

In July 1998, 300 Chinese workers struck in protest over delinquent payment of their salaries. A subsequent investigation revealed that the Chinese company had not forwarded payment to its employees. In negotiations held during the year, the Chinese Embassy and the Ministry of Social Affairs arranged for the employer to pay the workers' delinquent wages.

Unions may affiliate with international bodies. The KTUF belongs to the International Confederation of Arab Trade Unions and the formerly Soviet-controlled World Federation of Trade Unions.

b. The Right to Organize and Bargain Collectively

Workers have the right to organize and bargain collectively, subject to certain restrictions (see Section 6.a.). These rights have been incorporated in the Labor Law and, according to all reports, have been respected in practice.

The Labor Law provides for direct negotiations between employers and "laborers or their representatives" in the private sector. Most agreements are resolved in such negotiations; if not, either party may petition the Ministry of Social Affairs and Labor for mediation. If mediation fails, the dispute is referred to a labor arbitration board composed of officials from the High Court of Appeals, the Attorney General's office, and the Ministry of Social Affairs and Labor.

The Civil Service Law makes no provision for collective bargaining between government workers and their employer. Technically, wages and conditions of employment for civil service workers are established by the Government, but in practice, the Government sets the benefit scales after conducting informal meetings with officials from the civil service unions. Union officials resolve most issues at the working level and have regular access to other senior officials.

The Labor Law prohibits antiunion discrimination. Any worker who alleges antiunion discrimination has the right to appeal to the judiciary. There were no reports of discrimination against employees based on their affiliation with a union. Employers found guilty of antiunion discrimination must reinstate workers fired for union activities.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The Constitution prohibits forced labor "except in cases specified by law for national emergency and with just remuneration;" however, some foreign workers are treated as indentured servants (see Section 6.e.). The Government does not prohibit specifically forced and bonded labor by children, but such practices are not known to occur.

Foreign workers may not change their employment without permission from their original sponsors unless they have been in the country for over 2 years. Domestic servants particularly are vulnerable to abuses from this practice because they are not protected by the Labor Law. In many cases, employers exercise control over their servants by holding their passports, although the Government prohibits this practice and has acted to retrieve passports of maids involved in disputes.

Some foreign workers, especially unskilled or semiskilled South Asian workers, live much like indentured servants. They frequently face poor working conditions and some physical abuse (see Section 6.e.).

Domestic servants who run away from their employers may be treated as criminals under the law. However, the authorities usually do not enforce this provision of the law. In some reported cases, employers illegally withheld wages from domestic servants to cover the costs involved in bringing them to Kuwait. There are also credible reports of widespread visa trading, a system by which sponsors agree to extend their sponsorship to workers outside of the country in exchange for a fee of \$1,500 to \$1,800. Middlemen, generally foreigners, use the promise of Kuwaiti sponsorship to attract workers from economically depressed countries, taking a commission and remitting the rest to the nominal Kuwaiti sponsor. Once in Kuwait, such workers are farmed out to the informal sector or find employment with parties that would otherwise be unable to sponsor them. However, foreign workers who are recruited with these traded visas not only face possible prosecution for being engaged in illegal employment (that is, working for an employer other than their sponsor) but also leave themselves extremely vulnerable to extortion by employers, sponsors, and middlemen. Government efforts to address such abuses have failed to achieve significant progress.

d. Status of Child Labor Practices and Minimum Age for Employment

The legal minimum age is 18 years for all forms of work, both full- and part-time. Employers may obtain permits from the Ministry of Social Affairs and Labor to employ juveniles between the ages of 14 and 18 in certain trades. Education is compulsory for children between the ages of 6 and 15. The Government does not prohibit forced and bonded labor by children, but such practices are not known to occur (see Section 6.c.). Some small businessmen employ their children on a part-time basis, and there have been confirmed reports that some South Asian and Southeast Asian domestic servants are under age 18, but that they had falsified their ages in order to enter the country.

Juveniles may work a maximum of 6 hours a day on the condition that they work no more than 4 consecutive hours followed by a 1-hour rest period.

e. Acceptable Conditions of Work

The Ministry of Social Affairs and Labor is responsible for enforcing all labor laws. An informal two-tiered labor market ensures high wages for Kuwaiti employees, most of whom are in government white collar or business executive positions, while foreign workers, particularly unskilled laborers, receive substantially lower wages. There is no legal minimum wage in the private sector. In the public sector, the effective minimum wage is approximately \$742 (226 dinars) a month for citizens and approximately \$296 (90 dinars) a month for noncitizens. The public-sector minimum wage provides a decent standard of living for a worker and family. Wages of unskilled workers in the private sector do not always permit a decent standard of living for a worker and family. To be eligible to sponsor family members for residency, government workers must receive a minimum wage of \$1,480 (450 dinars) a month, and private-sector workers must make at least \$2,135 (650 dinars) a month.

The Labor Law establishes general conditions of work for both the public and the private sectors, with the oil industry treated separately. The Civil Service Law also prescribes additional conditions for the public sector. The Labor Law limits the standard workweek to 48 hours with 1 full day of rest per week, provides for a minimum of 14 workdays of leave each year, and establishes a compensation schedule for industrial accidents. Domestic servants, who are excluded specifically from the private sector Labor Law, frequently work long hours, greatly in excess of 48 hours.

The ILO has urged the Government to ensure the weekly 24-consecutive-hour rest period to temporary workers employed for a period of less than 6 months and workers in enterprises employing fewer than five persons. The law pertaining to the oil industry provides for a 40-hour workweek, 30 days of annual leave, and sick leave. Laws establishing work conditions are not applied uniformly to foreign workers.

Employers often exploit workers' willingness to accept substandard conditions. Some foreign workers, especially unskilled or semiskilled South Asian workers, live much like indentured servants, are unaware of their legal rights, and generally lack the means to pursue a legal remedy. They frequently face contractual disputes, poor working conditions, and some physical abuse (see Sections 5 and 6.c.). Most are in debt to their employers before they arrive in the country and have little choice but to accept the employer's conditions, even if they contradict the contractual terms. It is not uncommon for wages to be withheld for a period of months. Many foreign workers are forced to live in "housing camps," which generally are overcrowded and lack adequate cooking and bathroom facilities. The workers only are allowed off the camp compound on company transport or by permission of the employer. Foreign workers' ability to change their employment is limited, and, in some cases, employers' possession of foreign workers' passports allows them to exercise control over such employees (see Section 6.c.).

The Labor Law discriminates against foreign workers by limiting their ability to join unions (see Section 6.a.). The KTUF administers an Expatriate Labor Office, which is authorized to investigate complaints of foreign laborers and provide them with free legal advice. However, these services are not utilized widely. Any foreign worker may submit a grievance to the labor office regardless of union status.

In March approximately 300 Bangladeshi cleaners initiated a protest over unpaid wages and poor living conditions. The workers, who had not been paid for 8 months, filed a case against their employer with the Labor Court of the Ministry of Social Affairs. The case finally was resolved in August when the workers were repatriated to Bangladesh with 4 months worth of back wages. The repatriations were financed out of the forfeited employer's deposit with the Ministry of Social Affairs. An estimated 7,000 unskilled Egyptian workers rioted in the Kleitan neighborhood of Kuwait City on October 30-31. The riot reportedly was sparked when an initial altercation between an Egyptian and a Bangladeshi was broken up by the police and only the Egyptian was arrested. The initial rioting was suppressed by Ministry of Interior riot police who used tear gas to disperse the crowd. However, rioting broke out again the following day, and the riot police backed by special forces sealed off the neighborhood and restored calm. The police made up to 2,500 arrests. Most of those arrested were released the following day. An estimated 20 individuals were detained for a longer period and subsequently 4 were charged. There were no serious injuries; however, there were reports of isolated instances of the use of excessive force.

The Labor Law provides for employer-provided medical care and compensation to workers disabled by injury or disease due to job-related causes. The law also requires that employers provide periodic medical examinations to workers exposed to environmental hazards on the job, such as chemicals and asbestos. The Government has issued occupational health and safety standards; however, compliance and enforcement appear poor, especially with respect to unskilled foreign laborers. To cut accident rates, the Government periodically inspects installations to raise awareness among workers and employers, and to ensure that they abide by the safety rules, control the pollution resulting from certain dangerous industries, train workers who use new machines in specialized institutes, and report violations. Workers have the right to remove themselves from dangerous work situations without jeopardy to their continued employment, and legal protection exists for workers who file complaints about such conditions.

Trafficking in Persons

The law does not prohibit trafficking in persons; however, there were no reports that persons were trafficked in, to, or from the country.

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